

ASSESSMENT ONE – CIVIL PROCEDURE LR02 – FALL 2025 – CONFIDENTIAL

Your firm has agreed to represent Elizabeth Lemon, a television producer who—thanks to a colorful life and litigious colleagues—is a defendant in several recently initiated lawsuits. Your managing partner has asked you to write a memo assessing the complaint in *Kabletown v. Lemon*, a breach of contract action filed in federal court by Lemon’s employer. Specifically, your boss wants you to determine how likely it is that a Rule 12(b)(6) motion will succeed. As a start, she points you to a treatise that correctly states the elements of a breach of contract action in the state of Campbell:

To prove a breach of contract in the state of Campbell, the plaintiff must establish: (1) the existence of a valid contract between the parties; (2) that the plaintiff performed its obligation(s) under the contract; (3) that the defendant failed to perform its obligation(s); and (4) that the plaintiff suffered damages as a result of the defendant’s failure to perform.

You know from the case file that Lemon told your firm that Kabletown (through several intermediate companies) owns MBC, for whom she is the showrunner of a weekly live comedy show, Thursday Afternoon Live (TAL). Lemon has given you a copy of her employment contract, which states in relevant part that she is obliged to “write 5 funny and topical sketches each week the show is scheduled to air.” Lemon also tells you that she has had a long-running dispute with Kabletown about her pay, which she alleges is about 2% less than the contract provides for, thanks to part of her compensation being in company stock, which she claims Kabletown has intentionally devalued for tax reasons unrelated to her.

Kabletown’s complaint alleges, in relevant part, as follows:

¶13: In 2022, Plaintiff and Defendant entered into an employment agreement, attached to this Complaint as Exhibit A. The provisions of the agreement are herewith incorporated as though pled.

¶14: The employment agreement is a valid contract.

¶18: In exchange for compensation and benefits, Defendant agreed, in relevant part, to “write 5 funny and topical sketches each week the show is scheduled to air.”

¶22: Defendant has at all relevant times performed its obligations under the contract by continuously providing plaintiff with the benefits associated with employment, such as salary and benefits.

¶23: On June 5, 2025, Thursday Afternoon Live aired an episode (hereinafter, “The Breaching Episode”) featuring five sketches, all written by Defendant.

¶24: The Breaching Episode’s fourth sketch (hereinafter, “The Breaching Sketch”) involved a conversation between law-and-economics scholar Judge Richard Posner and the character “Mork,” an extraterrestrial portrayed by Robin Williams on the 1978-1982 sitcom “Mork & Mindy.”

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¶25: The Breaching Sketch was not topical or funny.

¶26: The *New York Times* described the Breaching Sketch as “woefully esoteric.”
TV Guide said: “*Thursday Afternoon Live?* More like *Worst-day After-snooze – Why?*”

[Here, Lemon interrupts to tell you that a popular Tweetster account, Tha Television Dude, posted a positive review, saying “the Posner/Mork sketch had me in stitches” and “if you don’t get the message this sketch was imparting about plastic straws and the growing problem of near-Earth-orbit space debris, that’s on you.”]

¶29: Defendant maliciously wrote the Breaching Sketch with the intent to inflict harm on Plaintiff’s reputation for airing topical and funny sketches. Defendant’s work computer’s search history on the week leading up to the Breaching Episode included the query: “audience confused tv sketch.”

¶30: Plaintiff has, in fact, suffered significant reputational harm as a result of the airing of the Breaching Episode, leading to damages as a result of Defendant’s failure to perform.

¶52: **Claim for Relief: Breach of Contract:** All prior allegations hereby reincorporated herein, Defendant is liable to Plaintiff for Breach of Contract.

(continued on next page)

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Prompt: Write a brief analysis for your managing partner analyzing whether Kabletown's Complaint sufficiently states a claim for breach of contract that will survive a motion to dismiss. Your response should clearly state:

- (1) Your conclusion as to whether the Complaint states a claim or whether a Rule 12(b)(6) motion will be successful;
- (2) The standard you are applying to determine the sufficiency of the Complaint;
- (3) The specific reasoning that led you to that conclusion, with reference to the applicable legal standards, relevant comparisons to caselaw studied in class (if any), and the specific facts of this case; and
- (4) Because Lemon is an important client, the managing partner would like you to be sure to address both the information she has provided and the allegations in paragraph 29.

Your partner would like you to provide an answer in no more than 750 words.

RULES:

1. You may work with partners or in groups of up to four on this.
 - a. Do not discuss it with anyone else – including upperclassmen (*e.g.*, Prof. Sawchak's scholars) or classmates *outside of* your group (I don't want one class-wide answer).
 - b. Please list the group members at the bottom of the memo (this will not count against your word limit)
 - c. Everyone in the group should turn in an *identical copy* via Blackboard – **every member of the group needs to submit a copy.**
2. At the bottom of your memo, please include the statement: "I/we did not use an AI/LLM to assist in the preparation of this answer," and sign your name(s). Electronically typing your name will suffice.
 - a. This also will not count against your word limit.
3. This assessment is due to be submitted as a .pdf or .docx file **submitted via Blackboard by 12:59 PM on September 4, 2025.**
 - a. This is a strict deadline. **No late assessments will be accepted.** No physical copies will be accepted. If for any reason the Blackboard submission does not work, I will accept alternate submissions via email, with the same deadline.